

TENTATIVE RULING

Case: **Alkaoud v. The Regents of the University of California**
Case No. CV2023-0240

Hearing Date: **May 21, 2026** **Department Thirteen** **9:00 a.m.**

On March 20, 2026, plaintiff Mohamed Alkaoud submitted his separate statement in opposition to defendant The Regents of the University of California's second motion for summary judgement, or in the alternative, summary adjudication. However, plaintiff failed to comply with responsive separate statement requirements. (Reply, pp. 9-10.) Specifically, plaintiff did not "unequivocally state whether [each] fact is 'disputed' or 'undisputed.'" (Cal. Rules of Court, rule 3.1350(f)(2); Code Civ. Proc., § 437c, subd. (b)(3) ["The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed"].) While the failure to comply with this requirement may constitute a sufficient ground to grant the motion, the Court declines to do so under the circumstances. (See, e.g., *Krasley v. Superior Court* (1980) 101 Cal.App.3d 425, 432 ["Summary judgment is a drastic remedy"]; Code Civ. Proc., § 437c, subd. (b)(3); see also *Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1186, fn. 4.) Rather, the Court will give plaintiff an opportunity to amend its separate statement to comply with this requirement.

Therefore, on the Court's own motion, defendant's second motion for summary judgement, or in the alternative, summary adjudication is **CONTINUED** to **June 23, 2026**, at 9:00 a.m. in Department Thirteen.

By **June 2, 2026**, plaintiff may submit an amended responsive separate statement, which complies with California Rules of Court, rule 3.1350. (See also Code Civ. Proc., § 437c, subd. (b)(3).) Plaintiff may not submit or rely on additional evidence in its amended responsive separate statement.

By **June 9, 2026**, defendant may submit an amended reply to plaintiff's responsive separate statement. Defendant may not submit or rely on additional evidence in its reply.

TENTATIVE RULING

Case: **Computacenter United States, Inc. v. AFCOM Technologies, Inc.**
 Case No. CV2026-0867

Hearing Date: **May 21, 2026** **Department Thirteen** **9:00 a.m.**

Application for *pro hac vice* admission of Michelle K. Stacko:

Plaintiff Computacenter United States Inc.'s application for *pro hac vice* admission of Michelle K. Stacko is **GRANTED**. (Cal. Rules of Court, rule 9.40; Stacko decl., ¶¶ 2-10; Murtagh decl., ¶ 5.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Application for *pro hac vice* admission of Samuel A. Hornak:

Plaintiff Computacenter United States Inc.'s application for *pro hac vice* admission of Samuel A. Hornak is **GRANTED**. (Cal. Rules of Court, rule 9.40; Hornak decl., ¶¶ 2-10; Murtagh decl., ¶ 5.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.